

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 10, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. White and Mr. Roybal, Item #28(a) was removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Mr. Johnson and Mr. Roybal, Item #24 was removed from the Consent Agenda. Mr. Case moved to approve remaining Consent Agenda items, seconded by Mr. Roybal. Mr. Shanor recused himself from participation on the item due to an affiliation with the Transportation Alternatives Program (Consent Agenda Item #23), and vacated Council Chambers. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

Mr. White moved to suspend the rules to move Agenda Item #24 (Resolution designating an historian laureate) to be acted upon prior to Agenda Item #6 (Vouchers), seconded by Mr. Roybal. Motion carried. Voting “yes” -- all members of the governing body.

RESOLUTION – Designating local historian William “Bill” Dubois as the City of Cheyenne’s official historian laureate in conjunction with community activities during 2017 celebrating the City’s 150th Anniversary. William Dubois expressed his gratitude for the designation. Reporting for Public Services Committee, Mr. Roybal moved to adopt, seconded by Mr. Luna. Comments were made in recognition of Mr. Dubois’ numerous dedicated services involving the educational profession and community participation, and his knowledge of Cheyenne’s local history. Motion carried. Voting “yes” -- all members of the governing body. (#5861)

[CA] Minutes from Regular Meeting of the Governing Body on June 26, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Collision Center) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” -- all members of

the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for the west 421.77' of Tract 1, Lincoln Valley Tracts, being situated in a portion of the NW ¼ of Section 36 Township 14 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming (located southeast of the intersection of Whitney Road and East Pershing Boulevard). Eric Hammer, Planning and Development Department, provided information on the property requested by the landowner to be annexed, and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the public hearing.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunny Side Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunny Side Addition; situated in the SW¼SW¼ of Section 27, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard). Eric Hammer, Development Department, provided information on the property requested by the landowner to be annexed, and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the public hearing.

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium-Density Residential and P Public to NR-3 Neighborhood Residential – High Density and P Public for Lots 1-20, Block 1 and Lots 1-18, Block 2 of Ehernberger Subdivision and a portion of Frank Court (Res. No. 5732), Sunnyside Addition 7th Filing, to be vacated, being located in a portion of the SW¼, NE¼, of Section 27, Township 14 N, Range 66 W of the 6th Principal Meridian in Cheyenne, Wyoming (located at the northeast corner of the intersection of College Drive and Rock Springs Street). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Comment was made on existing adjacent zones relative to the proposed zone change. Motion carried. Voting “yes” -- all members of the governing body. (#4187)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LI-Light Industrial to MUR—Mixed Use Residential Emphasis for a parcel of land situated at the South 48 feet of Lot 1, Block 285, Original City, Cheyenne, Wyoming, to be known as 1920 Dillon Avenue (located on the west side of Dillon Avenue between 19th and 20th Streets). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body. (#4188)

ORDINANCE – 3rd READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule. Vicki Nemecek, Director of Public Works, provided information in response to questions posed at the June 26th City Council meeting. Rick Fierro, RAM Trucking, requested information on how roll-off container rates are set and evaluated with Ms. Nemecek responding to the inquiry and advising a collection study is currently being conducted relative to operational costs and efficiencies. She noted study results would be available for next year’s review of sanitation rates. Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Discussion included: Fees assessed for roll-offs; landfill space as a commodity; City vs. private businesses providing customer roll-off containers; collection study vs rate study; annual internal rate review; customer service; business collection container enclosed pick-up locations; purpose of proposed rate increases; 5 percent cap of sanitation revenues to the general fund; increased payroll costs for equipment operators and long term management of the community’s solid waste involving landfill expansion and future closure costs. During discussion Ms. Nemecek provided information in response to inquiries, and noted that current rates are based on volume and frequency of pick-up, and Mayor Orr noted the previous rate ordinance failed due to a tie vote and extensive history on the topic has since been provided. Motion carried. Voting “yes” -- Mr. Case, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal, Mr. White and Mayor Orr. Voting “no” -- Mr. Cook, Mr. Luna and Mr. Shanor. (#4189)

ORDINANCE – 2nd READING – Creating Section 10.24.180, Nuisance exhibition motor vehicle exhaust-prohibited, of Chapter 10.24, Rules of the Road Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Discussion included: State statutes regulating certain exhaust issues; previously failed ordinance on the topic; appropriateness of placing the proposed ordinance in City Code Title 10, Vehicles and Traffic; amount of bond through Municipal Court for violation citations; health and safety concerns involving an individual’s health condition that may be exacerbated due to exhaust smoke, and option of addressing the problem through more concentrated efforts in enforcing state law. Chief Brian Kozak, Police Department, advised he has spoken with the Municipal Court Senior Judge who is reviewing the current bond amount for possible increase. It was confirmed that the Judge has authority to increase the bond without a change by City ordinance. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Shanor voting “no”.

ORDINANCE – 1st READING - Annexing to the City of Cheyenne, Wyoming, the west 421.77’ of Tract 1, Lincoln Valley Tracts, being situated in a portion of the NW ¼ of Section 36 Township 14 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming (located southeast of the intersection of Whitney Road and East Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from AR - Agricultural Residential (County) to AR Agricultural Residential for the west 421.77’ of Tract 1, Lincoln Valley Tracts, Laramie County, Wyoming (located southeast of the intersection of Whitney Road and East Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - Annexing to the City of Cheyenne, Wyoming, all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunny Side Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunny Side Addition; situated in the SW¼SW¼ of Section 27, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MU – Mixed-Use (County) to MUB Mixed-Use Business Emphasis for all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunny Side Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunny Side Addition, Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for Lots 1, 2, 5, and a portion of Lot 3, Block 1, South Park Estates, 6th Filing, Cheyenne, Wyoming (located between Partoyan Drive and Walterscheid Boulevard, north of I-80) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to NR-3 Neighborhood Residential High Density for Lot 1, Block 4, Storey Boulevard Extension Subdivision, Cheyenne, Wyoming, to be known as Converse Place Apartments (located between N. Converse Avenue and Ogden Road, south of Storey Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1ST READING - Amending Section 5.52.050 (A) and (B) of Chapter 5.52, Massage Establishments, within Title 5, Business Licenses and Regulations, of the Cheyenne City Code pertaining to Massage Therapists' licensing requirements - referred to Finance Committee. (Sponsor - Mr. Luna)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Arroyo Subdivision, a replat of all of Block 4 (Lots 1 thru 9 inclusive) and those adjacent alley rights-of-way, Spring Valley Addition, City of Cheyenne, Laramie County, Wyoming (located at the southeast corner of the intersection of Townsend Place and Marjon Court). Deb Roden, Woodhouse Roden Nethercott law firm, attorney representing the applicant, provided an update on a proposed map revision for 10 lots to be developed and addressing drainage issues, which includes a specific note (i.e. Note 10) which reflects the intent that the lots will be developed under standards of the UDC (Unified Development Code) Section 5.1.5 for DD7-single family detached residential dwellings. She noted, if approved, the applicant will be seeking a variance through the Board of Adjustment. Mitch Gerharter inquired as to the next steps procedurally if the plat is approved, improvements to the drainage area that would be dedicated to the City, and

whether there was a City governed timeframe for construction of the development project. Mayor Orr advised it was not unusual for open space to be donated to the City for a project and that she was not aware of a deadline for project construction. Seth Lloyd, Planning and Development, explained the next step, if the resolution is approved, is for the applicant to apply for a variance in lot size with the Board of Adjustment. If that's approved, then an engineering plan review for drainage improvements will be conducted, and then the building permit process will follow. He noted the drainage improvements are the responsibility of the developer. Mr. Lloyd added that he is also unaware of any City governed timelines for construction. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Mr. Roybal, seconded by Mr. Case, moved to amend by revised plat map dated June 22, 2017 and by adding the following language to Note 10: "The lots contained within this plat shall be considered as developable pursuant to the standards of UDC 5.1.5 DD7-single family detached dwelling/small lot for ten (10) single family residential units." It was noted the amendment to Note 10 was added at the request of the applicant to provide intent to the Board of Adjustment that the governing body was in support of the development. Mr. Lloyd stated the revised map provides clarification on some prior issues, however, staff is not in favor of including Note #10, either as initially proposed or as amended, and staff is recommending denial of the plat as a whole as the proposed lots are not of a buildable size within the current zoning district. Upon inquiry, Alessandra McCoy, Assistant City Attorney, explained the City isn't necessarily opposed but the note wording isn't enforceable and suggested Note 10 language could be altered to reflect the governing body's intent instead of having the word "shall" in the wording. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting "no". Mr. Shanor, seconded by Dr. Rinne, moved to amend Note 10 by striking the word "shall" and inserting the phrase "it is the intent of the governing body that they" so the sentence would instead read as follows: "The lots contained within this plat, it is the intent of the governing body that they be considered as developable pursuant to the standards of UDC 5.1.5 DD7-single family detached dwelling/small lot for ten (10) single family residential units." Following discussion, motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no". It was noted the amendments were a compromise for the property owner/developer and the neighborhood but it places staff in a difficult position. Main motion as twice amended carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting "no". (#5862)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for North College Subdivision, a replat of Lots 1-20, Block 1 and Lots 1-18, Block 2 of Ehernberger Subdivision and a portion of Frank Court (Res. No. 5732), Sunnyside Addition 7th Filing, to be vacated, being located in a portion of the SW¼, NE¼, of Section 27, Township 14 N, Range 66 W of the 6th Principal Meridian in Cheyenne, Wyoming (located at the northeast corner of the intersection of College Drive and Rock Springs Street). Motion (per Consent Agenda) carried. (#5863)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5864)

[CA] RESOLUTION – Authorizing the filing of applications with the Federal Transit Administration, an operating administration of the United States Department of Transportation,

for Federal Transportation assistance authorized by Title 49, United States Code, Section 5307. Motion (per Consent Agenda) carried. (#5865)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for Transportation Alternatives Program (TAP) funds for construction of the West Allison School Crosswalk Project. Motion (per Consent Agenda) carried. (#5866)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for BT II First Subdivision, a replat of a portion of Tract 13, Allison Tracts, being situated in the west ½ of Section 8, Township 13 North, Range 66 West of the 6th Principal Meridian, Laramie County, Wyoming (located east of and adjacent to South Greeley Highway, south of Fox Farm Road) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Authorizing rental rates for the use of the Cheyenne Botanic Garden complex and dedicating the funds raised to the operations and maintenance of the Cheyenne Botanic Gardens complex – referred to Finance Committee. (Sponsor - Dr. Rinne)

[CA] Preliminary Plat for South Park Estates 10th Filing, a replat of Lots 1, 2, 5, and a portion of Lot 3, Block 1, South Park Estates, 6th Filing, Cheyenne, Wyoming (located between Partoyan Drive and Walterscheid Boulevard, north of I-80) – referred to Public Services Committee.

Agreement between the City of Cheyenne and the Diocese of Cheyenne to sell and purchase real property located at 2020-2022 Capitol Avenue, Cheyenne, Wyoming, and described as all of Lots 1 and 2, Block 266, Original City, City of Cheyenne, Laramie County, Wyoming. Vicki Nemecek, Director of Public Works, explained the agreement adds additional wording relative to certain documentation the City will provide the Diocese about the property, if available. Mr. White moved to approve, seconded by Mr. Johnson. Upon inquiry, Ms. Nemecek reviewed the documents which will be provided, and advised sale of the property is “as is”. It was noted that “as is” means with the exception of any defects in the title which make the property unmarketable, and that there are no known defects. Motion carried. Voting “yes” -- all members of the governing body. (#6682)

Following a brief recess, Mayor Orr reconvened the meeting at 7:58 p.m.

[CA] Professional Services Agreement between the Cheyenne Metropolitan Planning Organization and Ayres Associates for the Cheyenne Frontier Days Traffic Study and Transportation Plan. Motion (per Consent Agenda) carried (amount not to exceed \$89,474.00). (#6683)

[CA] Human Services Agreement with Safe Harbor to provide a safe and supportive environment for children in the City of Cheyenne – referred to Finance Committee.

[CA] Human Services Agreement between Cheyenne Housing Authority – referred to Finance Committee.

[CA] Human Services Agreement with Peak Wellness, Inc. Alcohol Receiving Center – referred to Finance Committee.

[CA] Human Services Agreement with United Way of Laramie County (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for animal control and animal shelter services – referred to Finance Committee.

[CA] Contract Extension Agreement to the Community Counseling and Intervention Services Agreement (City Contract No. 6266) between the City of Cheyenne Youth Alternatives Division and Laramie County School District Number One – referred to Finance Committee.

Consideration of RFP-7-17 for a contract between the City of Cheyenne and A1 Organics for resources and services of the Public Composting Facility (solid waste fund) – referred to Finance Committee. Vicki Nemecek, Director of Public Works, stated the contract provides for added services for disposal of brush debris from the May snow storm. Mr. White advised, due to the recent snow storm event resulting in excessive branch collection, a need to increase services was determined and due to timing involving contractor availability, the item was reviewed under other items for the agenda at the July 5, 2017 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. White moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body (#6683).

[CA] Consideration of Bid #S-15-17 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp., Cheyenne, WY, for the Kennedy Guardrail Reconstruction Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-14-17 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, WY, for the 2017 City Chip Seal, #1 Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase for the Police Department Motorola APX7500 dual band high power radios from Wireless Advanced Communications, Evans, CO (2015-2018 1% Sales Tax) – referred to Finance Committee.

Re-Appointments of Michael Sorenson, Rob Dafoe, Gus Lopez, Monique Meese and Carla Thurin to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Johnson moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Orr who did not vote (Mayoral appointments).

Retail liquor license transfer of ownership application filed with the City Clerk’s Office for Maverik, Inc. d/b/a Maverik, Inc. #426, 140 Gardenia Drive, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, d/b/a The Mayflower, 112 West 17th Street, Cheyenne, WY). Buddy Tennant spoke in opposition of the license transfer to a convenience store environment and submitted a written letter of protest in support of his comments (on file in City Clerk’s office). David Hancock, Vice President and general counsel, Maverik, Inc.,

provided information on Maverik's business operations and submitted and discussed a handout (on file with City Clerk's office) which contained additional information from the one that was submitted at the previous City Council meeting. He commented in support of the transfer which will allow a small package store within the building, and incremental sales tax revenue for Cheyenne. Chuck West, John Lambousis and Steve Borin spoke in favor of the transfer, citing recent state statute changes involving "parked" liquor licenses; history of the retail license; additional sales tax revenue to be generated by having an active license; addressing underage drinking concerns; no interest having been expressed by anyone interested in acquiring the license for use in the downtown area, and previous transfer applications for the license that have not been approved. Kevin Georges discussed the restriction on the number of retail liquor licenses available through the City due to the state statute population formula; basing a decision on whether to approve the application on what's best for Cheyenne, and conditions set forth in Wyo. Stat. Section 12-4-104 (b)(iii) regarding whether approval of the license meets the needs of the vicinity. Mr. White moved to approve, seconded by Mr. Luna. Upon inquiry, Carol Intlekofer, City Clerk, advised the license is currently in "parked" status and under the newly revised statute provisions, the license could come back to the City during the 2018 licensing renewal process as the timeframe to extend the "parked" status has changed, and commented on the definition of "operational". Discussion included the following: Antiquated state statute structure regarding liquor licenses; financial value to holders of a retail liquor license; having a willing seller and willing buyer and free enterprise; whether transfer of the license will increase sales tax revenue; whether the area is already served by existing licensees; status of "parked" licenses; no opposition to the transfer received from residents or liquor licensees in the area; data submitted by Maverik's supporting the transfer and Maverik's preliminary review of potentially requesting transfer of the license for use at it's east Cheyenne business location. Upon inquiry, Ms. Intlekofer advised there are approximately four retail licenses currently in "parked" status and not all licenses are on the same status ending timeframe. Motion carried. Voting "yes" -- Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Luna, Mr. Roybal, Mr. Shanor and Mr. White. Voting "no" -- Mr. Case, Dr. Rinne and Mayor Orr.

Under other business:

Ellen Stomp inquired about the scope of work to be included in the traffic study for Cheyenne Frontier Days, noting that pedestrian and bicyclist traffic need to be included in the study and Eighth Avenue crosswalks should be considered. Vicki Nemecek, Director of Public Works, provided information on a proposed painted crosswalk (north-south) on the east side of Carey and Eighth Avenues. Mayor Orr advised the study is through the MPO (Metropolitan Planning Organization) and CFD and includes pedestrian traffic and was approved pursuant to action on the Consent Agenda earlier in the meeting. Mr. Laybourn commented that members of the community should be able to request removal of items from the Consent Agenda.

Don Pierson discussed a safety issue with alley traffic near the 4400 block of East 17th Street (and Cheyenne Ranch area) off the Greenway path that is experiencing speeding, careless driving and unsafe vehicle traffic resulting in safety concerns for the residential neighborhood. He stated drivers are using the alley as a shortcut route and due to the configuration of the alley numerous accidents have occurred in which the City's split rail fence has been damaged and vehicles have wound up down the slope into the back yards of residences. Mr. Pierson requested the alley be made a one-way with barricading on the east end and signage at the west end that no

through traffic was allowed. Vicki Nemecek, Director of Public Works, advised that the alley is approximately 1,300 ft. in length and slopes downhill and that she had visited with the traffic engineer about potentially blocking the alley either on the east end or in the middle and that further research would be conducted. Corey Kimball expressed similar safety concerns; reviewed accident history over the years, and residents' concerns, and encouraged closure of the alley to through traffic. In support of his comments, Mr. Kimball submitted a written proposal and petition concerning the unpaved access road (on file with City Clerk's office). Kristin Russell, referencing her email to governing body members (on file with City Clerk's office), also spoke about the dangerous conditions involving vehicle traffic and expressed support to close the alley to traffic. [City Clerk note: Due to a previous commitment, Mr. Shanor left the meeting]

Reminder was made of the annual Police Department sponsored Neighborhood Night-Out community block parties to be held July 11th. Mr. Johnson noted an upcoming community event involving collection of non-perishable goods and requested an update on the status of the electrical and landscaping work at the roundabout near South High School. In response to comment regarding City-owned bricks stored in the downtown area, Vicki Nemecek, Director of Public Works, advised City staff is addressing the problem. Appreciation was expressed to staff for researching the alley issue raised by concerned residents.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:40 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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